

The following Inquiry Judge Subpoena for Web-based Email records, excluding content, is a redacted version of an Inquiry Judge Subpoena prepared by King County Senior Deputy Prosecuting Attorney Ivan Orton. The same format can be used for a trial subpoena. Reach Mr. Orton at ivan.orton@metrokc.gov or (206) 296-9082.

**IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
FOR THE COUNTY OF KING**

PROCEEDINGS BEFORE THE SPECIAL INQUIRY JUDGE	)	NO. 04-2-12050
	)	
2004	)	SUBPOENA
	)	DUCES TECUM
	)	No. XXXX

TO: MSN Hotmail Custodian of Records
1065 La Avenida
SVC4/1120
Mountain View, CA 94043

IN THE NAME OF THE STATE OF WASHINGTON, You are hereby commanded to be and appear before the SPECIAL INQUIRY JUDGE of King County, State of Washington, in Room W764, King County Courthouse, Third Avenue and James Street, Seattle, Washington, forthwith, then and there to give evidence concerning matters there under investigation and then and there to have with you

- A. All records and other evidence relating to the user account/user name *JohnDoe@hotmail.com* between the creation of the account and the present, including, without limitation, subscriber names, user names, screen names or other identities, mailing addresses, residential addresses, business addresses, e-mail addresses and other contact information, telephone numbers or other subscriber number or identifier number, billing records, information about the length of service and the types of services the subscriber or customer utilized, and any other identifying information, whether such records or other evidence are in electronic or other form, **but not including copies of stored electronic communications**;
- B. All connection logs and records of user activity for user account/user name *JohnDoe@hotmail.com* between the creation of the account and the present, including:
 - 1. Connection date and time;
 - 2. Disconnect date and time;
 - 3. Method of connection (e.g., telnet, ftp, http);
 - 4. Type of connection (e.g., modem, cable / DSL, T1/LAN);
 - 5. Data transfer volume;

6. User name associated with the connection and other connection information, including the Internet Protocol address of the source of the connection;
7. Telephone caller identification records;
8. Records of files or system attributes accessed, modified, or added by the user;
9. Connection information for other computers to which the user of the user account/user name JohnDoe@hotmail.com connected, by any means, during the connection period, including the destination IP address, connection time and date, disconnect time and date, method of connection to the destination computer, the identities (account and screen names) and subscriber information, if known, for any person or entity to which such connection information relates, and all other information related to the connection from ISP or its subsidiaries.

AND to remain in attendance on said SPECIAL INQUIRY JUDGE until discharged, and
HEREIN FAIL NOT AT YOUR PERIL.

WITNESS The Honorable XXXXXXXXXXXXXXXX
Judge of said Superior Court and Seal Thereof,
This _____ day of _____, 2004.

IVAN ORTON - WSBA NO. 7723
Senior Deputy Prosecuting Attorney
Fraud Division